

eSign Consent

Consumer Disclosure - Conducting business electronically, receiving electronic notices and disclosures, and signing documents electronically.

Please read the following information **before signing this consent and the following closing documents**. By proceeding forward and signing this document you are agreeing that you have reviewed the following consumer disclosure information and consent to transact business using electronic communications, to receive notices and disclosures electronically, and to utilize electronic signatures in lieu of using paper documents. You understand electronic signatures are equivalent to traditional signatures, and equally binding. This electronic signature service is provided on behalf of clients, "requesting party," whom are sending electronic documents, notices, disclosures or requesting electronic signatures to you. If there is no third-party "requesting party," you are deemed the "requesting party". You are not required to sign documents electronically. If you prefer not to do so you may request to receive paper copies and withdraw your consent at any time as described below.

Paper Copies:

You are not required to receive notices or disclosures or sign documents electronically and may request paper copies of documents or disclosures if you prefer to do so. You also have the ability to download and print any open or signed documents sent to you through the electronic signature system. If you wish to receive paper copies in lieu of electronic documents, you may close this web browser and request paper copies from the "requesting party" by following the procedures outlined below. The "requesting party" may apply a charge for requesting paper copies.

Withdrawal of Consent:

You may withdraw your consent to receive electronic documents, notices or disclosures at any time. In order to withdraw consent, you must notify the "requesting party" that you wish to withdraw consent and to provide your future documents, notices, and disclosures in paper format. After withdrawing consent if at any point in the future you proceed forward and utilize the electronic signature system you are once again consenting to receive notices, disclosure, or documents electronically. You may withdraw consent to receive electronic notices and disclosures and optionally electronically signatures by following the procedures described below.

Scope of Consent:

You agree to receive electronic notices, disclosures, and electronic signature documents with all related and identified documents and disclosures provided over the course of your relationship with the "requesting party." You may at any point withdraw your consent by following the procedures described below.

Requesting paper copies, withdrawing consent, and updating contact information. You have the ability to download and print any documents we send to you through the electronic signature system. To request paper copies of documents or withdraw consent to conduct business electronically (i.e. receive documents, notices, or disclosures electronically or sign documents electronically) please contact the "requesting party" by telephone, postal mail, or by sending an email to the "requesting party" with the following subjects:

"Requesting Paper Copies" provide name, email, telephone number, postal address and document title.

"Withdraw Consent" provide name, email, date, telephone number, postal address.

"Update Contact Information" provide name, email, telephone number and postal address Any fees associated with requesting paper copies or withdrawing consent will be determined by the "requesting party."

Required hardware:

- Desktop or laptop computer
- Web camera

Required Software:

- Chrome or Firefox browser. Browsers must have cookies enabled.
- You will need an up to date pdf viewer, like Acrobat Reader to view signed documents.

Teresa Sordo

2/23/2024

Signature

Date

Signature

Date

**AGREEMENT
FOR
WATER AND SANITARY SEWER FACILITIES
BETWEEN
MIAMI-DADE COUNTY
AND
ALTA SUNSET, LLC**

This instrument prepared by:

**Christopher Schaffer
New Business Section
Miami-Dade Water and Sewer Department
3575 S. LeJeune Road
Miami, Florida 33146-2221**

THIS AGREEMENT, made and entered into at Miami-Dade County, Florida, this 23 day of February, 2024, by and between **Miami-Dade County**, a political subdivision of the State of Florida, hereinafter designated as the "**COUNTY**", whose mailing address is: c/o Miami-Dade Water and Sewer Department, P.O. Box 330316, Miami, Florida 33233-0316, and **ALTA SUNSET, LLC**, a Florida limited liability company, hereinafter designated as the "**DEVELOPER**", whose mailing address is: 1313 Ponce De Leon Boulevard, Suite 200, Coral Gables, Florida 33134.

W I T N E S S E T H:

WHEREAS, the **DEVELOPER** desires water and sewer service to be rendered to property leased by the **DEVELOPER**; and

WHEREAS, the **Miami-Dade Water and Sewer Department**, hereinafter designated as the "**DEPARTMENT**", operates the water and sewer systems owned by the **COUNTY**.

NOW, THEREFORE, in consideration of the mutual covenants entered into between the parties hereto to be made and performed and in consideration of the benefits to accrue to each of the respective parties, it is covenanted and agreed to as follows:

1. **DEVELOPER'S PROPERTY.** The **DEVELOPER** leases a certain tract of land in Miami-Dade County, Florida, per a **Memorandum of Lease Agreement**, dated August 31, 2018, with, **Sunset-Miami Investments, Inc.**, which is legally described in **Exhibit "A"** attached hereto and made a part hereof, hereinafter sometimes described as the "**DEVELOPER'S** property". The **DEVELOPER** has requested that the **DEPARTMENT** render water and sewer service to the **DEVELOPER'S** property and the **COUNTY** agrees to do so subject to the terms, covenants and conditions contained herein.

2. **WAIVER.** No delay or failure to exercise a right under this Agreement or any other Agreement shall impair or shall be construed to be a waiver thereof. No waiver or indulgence of any breach of this Agreement or series of breaches shall be deemed or construed as a waiver of any other breach of same or as voiding or altering any other obligation of the parties under this Agreement or any other Agreement. No order or directive given by the **COUNTY** or its agents shall be considered as waiving any portion of this Agreement unless done in writing by a person having actual authority to grant such waiver.

3. **DEVELOPER ACKNOWLEDGMENT.** The **DEVELOPER** hereby acknowledges and agrees that any right to connect the **DEVELOPER'S** property to the **COUNTY'S** sewage system is subject to the terms, covenants and conditions set forth in court orders, judgments, consent orders, consent decrees and the like entered into between the **COUNTY** and the United States, the State of Florida and/or any other governmental entity, including but not limited to, the Consent Decree entered on April 9, 2014, in the United States of America, State of Florida and State of Florida Department of Environmental Protection v. Miami-Dade County, Case No. 1:12-cv-24400-FAM, as well as all other current, subsequent or future enforcement and regulatory actions and proceedings.

4. **PROVISION OF SERVICE AND CONNECTION CHARGES.** The **COUNTY** will provide an adequate domestic water supply for the **DEVELOPER'S** property and will receive and dispose of sanitary sewage from the **DEVELOPER'S** property. The **DEVELOPER** shall pay water and sewer connection charges for all those units to be constructed on the **DEVELOPER'S** property subject to the limitations specified herein. The **DEVELOPER** acknowledges that, to the extent that water or sewer service will ultimately be rendered to the **DEVELOPER'S** property by a volume customer, the **DEVELOPER** is a new retail user provided water or sewer service from a volume customer, and acknowledges that it is responsible for payment of connection charges; however, in the event that water or sewer service is provided directly by the **COUNTY**, the **DEVELOPER** acknowledges that it is a new retail customer of the **COUNTY** and accordingly also liable for payment of connection charges. The **DEVELOPER** may be considered both a new retail customer and a new retail user provided service by a volume customer in the event that the **COUNTY** provides water service to the **DEVELOPER'S** property and a volume customer provides sewer service, or vice-versa. The connection charges are based on the average daily gallons for the various building units and/or use as shown on **Exhibit "B"** attached hereto and made a part hereof, and as revised by the **COUNTY** from time to time, multiplied by the applicable rates established by the **COUNTY**. The **DEVELOPER** intends to construct and connect to the **COUNTY'S** water and sewer systems three hundred sixteen (316) apartments, one thousand sixty-two (1,062) square feet of full service restaurant, and two thousand six hundred thirty-four (2,634) square feet of retail, representing a combined average daily gallonage of forty-three thousand nine hundred eighty-five (43,985) gallons, replacing twenty thousand three hundred seventy-one (20,371) square feet of office building, previously connected to the **COUNTY'S** water and sewer systems, representing an average daily gallonage credit of one thousand nineteen (1,019) gallons. Therefore, the agreed total average daily gallonage increase is forty-two thousand nine hundred sixty-six (42,966) gallons, resulting in combined water and sewer connection charges in the amount of three hundred thousand three hundred thirty-two dollars and thirty-four cents (\$300,332.34). However, water and sewer connection charges shall be calculated at the rates in effect at the time of actual connection to the **COUNTY'S** water and sewer systems. The **DEPARTMENT'S** current connection charge rates are one dollar and thirty-nine cents (\$1.39) and five dollars and sixty cents (\$5.60) per gallon per day for water and sewer, respectively. The water and sewer connection charge rates are subject to revision by the Board of County Commissioners at any time. The **DEVELOPER** shall pay fees and/or charges specified herein at the time of issuance of Verifications Form(s). The **DEPARTMENT** shall not, under any circumstances, render water and/or sewer service to the **DEVELOPER'S** property until such time as the fees and/or charges specified herein have been paid in full.

5. **OTHER USES ON THE PROPERTY.** If the **DEVELOPER** constructs buildings other than those outlined in paragraph 4 above, or otherwise changes the use of structures built such that paragraph 4 is no longer an accurate description of the uses at the **DEVELOPER'S** property, the **COUNTY** shall determine if additional capacity is needed, as calculated using **Exhibit "B"** attached hereto and as revised by the **COUNTY** from time to time. If additional capacity is required, connection charges, computed at prevailing rates, capacity allocation, if available, and construction connection charges, if any, shall be required to be paid by the **DEVELOPER**. If requested by the **DEPARTMENT**, the **DEVELOPER** shall provide the **COUNTY** a list of all tenants and building units and/or use

prior to the installation of any water meters and/or rendition of sewer service by the **COUNTY** for the **DEVELOPER'S** property.

6. **POINTS OF CONNECTION.** The **DEPARTMENT** shall provide points of connection to the **DEVELOPER** based on the project as specified in the **AGREEMENT**. The **DEVELOPER** shall provide plans for the **DEPARTMENT'S** review based on the points of connection. Points of connection shall not be changed without prior approval by the **DEPARTMENT**.

7. **DISCLAIMER FOR ATLASES AND AS-BUILTS:** Please be advised that the Atlases and As-Builts provided by the **DEPARTMENT** are a part of Miami-Dade County records, and discrepancies between the existing field conditions and the information shown on records may exist due to the age of the records and/or changes in the field conditions that have not been reported. Therefore, the **COUNTY** will not be held responsible or liable for any discrepancies and/or any consequences and inconveniences such discrepancies may cause. It is the **DEVELOPER'S** responsibility to field verify the information shown on the records, including the existence of sewer laterals. If the sewer lateral cannot be found buried in the field, it is the **DEVELOPER'S** responsibility to install the lateral at its own expense.

8. **DESIGN AND CONSTRUCTION OF FACILITIES.** The **DEVELOPER** at its own cost and expense shall cause to be designed, constructed and installed all of the necessary water and/or sewer facilities provided for in this Agreement unless otherwise specified. The facilities shall include any and all water mains, valves, fittings, fire hydrants, firelines, service connections, service lines, shutoffs, meter boxes, air release valves, gravity sewer mains, laterals, manholes, and all appurtenances thereto for a complete installation. The final design and construction of the facilities shall meet the requirements set forth in the latest revision of the **DEPARTMENT'S** "Rules and Regulations" for water and/or sewer service, shall be in accordance with the latest revision of the **DEPARTMENT'S** "Design and Construction Standard Specifications and Details", and shall be subject to approval by the **DEPARTMENT**.

9. **INSPECTION.** The **COUNTY** shall have the right but not the obligation to make engineering inspections of all the construction work performed by the **DEVELOPER** under the terms of this Agreement including private facilities not to be conveyed to the **COUNTY**. Such inspections shall not be construed to constitute any guarantee on the part of the **COUNTY** as to the quality and condition of materials and workmanship. Any inspections by the **DEPARTMENT** shall not relieve the **DEVELOPER** of any responsibility for proper construction of said facilities in accordance with approved plans and specifications. Furthermore, any inspections by the **DEPARTMENT** shall not relieve the **DEVELOPER** of responsibility for the quality and condition of materials and workmanship.

10. **TESTS.** During construction and at the time when various tests are required, the **COUNTY'S** engineer or its authorized representative, together with the **DEVELOPER'S** engineer and contractor, shall jointly be present to witness tests for determination of conformance with approved plans and specifications. The **DEVELOPER** shall notify the **COUNTY** a minimum of twenty-four (24) hours in advance of the tests.

11. **CONSTRUCTION MEETINGS.** The **COUNTY** reserves the right to schedule construction meetings with the **DEVELOPER'S** representatives (Engineer, Project Manager, Construction Superintendent and others) at a place designated by the **COUNTY** with respect to project related matters upon twenty-four (24) hours' notice.

12. **SUBCONTRACTORS AND CONSULTANTS.** The **COUNTY** reserves the right, at any time, to bar any subcontractor or consultant employed by the **DEVELOPER** from engaging in any sort of work or activity related to this Agreement, if such be in the interests of the **COUNTY**. In the event the **COUNTY** rejects any subcontractor or consultant, said subcontractor or consultant will immediately cease work on anything related to this Agreement. The **DEVELOPER** shall not be entitled to compensation for any monies previously paid to any subcontractor or consultant if said subcontractor or consultant is rejected by the **COUNTY**.

13. **COMPLIANCE WITH ALL LAWS.** The **DEVELOPER**, at its own cost and expense, shall comply with all applicable laws, statutes, rules, and ordinances in carrying out the activities contemplated herein.

14. **APPROVALS AND PERMITS.** The **DEVELOPER** shall be fully responsible for obtaining all required approvals from all appropriate governmental and regulatory agencies and all necessary permits for all facilities contemplated in this Agreement. Notwithstanding anything else contained herein to the contrary, this Agreement shall not constitute or be interpreted as a waiver of any requirements of any other agency of Miami-Dade County and/or any requirements of the Code of Miami-Dade County. The **DEVELOPER** is responsible for obtaining all permits as may be required for the work contemplated herein pursuant to the Code of Miami-Dade County.

15. **COUNTY AS PERMITTEE.** Certain federal, state and county agencies, including but not limited to the State of Florida Department of Transportation, the South Florida Water Management District, the U.S. Army Corps of Engineers and the Florida East Coast Railroad may require that the **COUNTY** be named as permittee for certain construction activities even though the **DEVELOPER** or the **DEVELOPER'S** contractor will actually perform the work. To insure that the **COUNTY** will incur no costs or liability as a result of being named permittee on such permits, the **DEVELOPER** shall provide sufficient security as acceptable to the **COUNTY** which shall indemnify and protect the **COUNTY** from all claims, actions, judgments, liability, loss, cost and expense, including reasonable attorney's fees, related to work performed by the **DEVELOPER** pursuant to such permits. The security shall be furnished prior to the start of construction and shall be in an amount equal to the **COUNTY'S** cost estimate for the permit work. The **DEVELOPER** shall have sixty (60) days to resolve any claims by a permittor. Otherwise, the **DEPARTMENT** shall be entitled to pay said claims from the security. The **DEVELOPER** shall be liable for all costs in excess of the security.

15. **WATER SERVICE LINES.** Any water service lines two (2) inches or less in diameter that are required for the **DEVELOPER'S** property which will be directly connected to existing mains owned by the **COUNTY** shall be installed by the **DEVELOPER'S** Contractor under supervision of a **DEPARTMENTAL** Water Distribution Licensed Operator

and Donations Inspector. The **DEVELOPER** hereby agrees to pay to the **COUNTY** its work order charges prior to any such installation.

16. **OWNERSHIP OF WATER METER.** The **COUNTY** shall own and install the required water meter as a part of any water service installation. Ownership by the **COUNTY** shall terminate at the outlet side of each water meter. The **DEVELOPER** shall pay all applicable installation fees.

17. **WATER MAIN CONSTRUCTION CONNECTION CHARGES.** The **DEVELOPER** shall pay a water main construction connection charge equal to thirty-five dollars (\$35.00) per front foot of its property which directly abuts a water main which was installed by other parties (**ID# 21130**). The length of front footage abutting the water main is hereby agreed to be one hundred eighty-two (182) feet, resulting in a construction connection charge in the amount of six thousand three hundred seventy dollars (\$6,370.00). Per annum simple interest as established and authorized by **Section 687.01, Florida Statutes**, will accrue on the construction connection charge from July 1, 2016, to the date of payment by the **DEVELOPER**. The interest rate used shall be the rate established by **Section 687.01, Florida Statutes**, at the time of payment by the **DEVELOPER**. The **DEPARTMENT** shall not, under any circumstances, render water to the **DEVELOPER'S** property until such time as the construction connection charge and interest specified herein have been paid in full.

18. **SEWAGE PUMPING STATION AND SEWER FORCE MAIN CONSTRUCTION CONNECTION CHARGE.** The **DEVELOPER** shall pay the **COUNTY** a sewer construction connection charge equal to one dollar and seventy-one cents (\$1.71) per each average daily gallon to be connected to the **COUNTY'S** sewer system for its pro-rata share of the actual construction cost of **COUNTY** Sewage Pumping Station Number 177 and related sewer force main, constructed and installed by the **DEPARTMENT (ID# 21579)**, resulting in a construction connection charge of seventy-three thousand four hundred seventy-one dollars and eighty-six cents (\$73,471.86). Per annum simple interest as established and authorized by **Section 687.01, Florida Statutes**, will accrue on the construction connection charge from February 27, 2012, to the date of payment by the **DEVELOPER**. The interest rate used shall be the rate established by **Section 687.01, Florida Statutes**, at the time of payment by the **DEVELOPER**. The **DEPARTMENT** shall not, under any circumstances, render water and/or sewer service to the **DEVELOPER'S** property until such time as the construction connection charge(s) and interest specified herein have been paid in full.

19. **TREATMENT AND TRANSMISSION CAPACITY.** In addition to the covenants and conditions set forth herein, water and sewer service to be rendered by the **COUNTY** is subject to the following:

- a. Issuance of a valid operation permit by the State of Florida for the **COUNTY'S** sewage treatment facility serving the **DEVELOPER'S** property which allows additional connections,
- b. Sufficient available capacity in the **COUNTY'S** sewer system and connection approval, as specified in paragraph 3 herein,
- c. Available water by the **COUNTY**.

However, in no event will the **COUNTY** be obligated to supply any more water or sewage treatment capacity in any one year than is called for by the building connection schedule attached hereto and made a part hereof as **Exhibit "C"**. Any variation from said connection schedule which results in increased yearly demand on the water resources or sewage treatment facility capacity of the **COUNTY** not specifically provided for in **Exhibit "C"** shall be subject to the written approval and consent of the **DEPARTMENT** and shall be dependent on the availability of the water resource and the various restrictions placed on the supply of water or the disposal of sewage by local, state and federal government agencies and the physical limitations on the **COUNTY'S** supply and treatment capacity. If the **DEVELOPER** does not utilize the yearly amount of water or sewage treatment facility allocation specified in **Exhibit "C"**, said amount will be available to the **DEVELOPER** in the next calendar year subject to the limitations and provisions specified herein.

20. **ALLOCATION OF CAPACITY.** The **COUNTY** agrees to include the aforesaid allocation in its regional water supply, production and transmission facilities and regional sanitary sewer system, once the **DEVELOPER** is granted necessary sewer allocation, as specified in paragraph 4 hereinabove. However, it is mutually agreed and understood by the **COUNTY** and the **DEVELOPER** that the allocation of capacity by the **COUNTY** does not guarantee the ability of the **COUNTY** to supply water for the **DEVELOPER'S** property or the ability to receive and dispose of sewage originating from the **DEVELOPER'S** property. Capacity allocation is subject to local, state and federal agencies and other regulatory bodies having jurisdiction. In connection therewith, the **DEVELOPER** agrees that the **COUNTY** shall not be liable or in any way responsible for any costs, claims or losses incurred by the **DEVELOPER** as a result of actions by regulatory bodies, which are related to capacity allocation.

21. **FACILITIES EASEMENTS.** If the facilities contemplated herein or any portion thereof are installed within private property outside of public right-of-way, the facilities shall be installed in the center of a twelve (12) foot wide easement for water facilities, and a fifteen (15) foot wide easement for sewer facilities, both with a twenty-five (25) foot minimum vertical clearance above the finished grade. The **DEPARTMENT** shall have twenty-four (24) hour access to the easement for emergency purposes. If the facilities are not located in platted easements, then easements shall be provided to the **COUNTY** by the **DEVELOPER** prior to the **COUNTY'S** installation of a water meter and/or the rendition of sewer service to the **DEVELOPER'S** property. The **DEVELOPER** may not place any pavers or other structures in an easement area which would prevent the **DEPARTMENT**, at its sole discretion, from making full use of the easement, and the **DEVELOPER** shall remove same, at the **DEVELOPER'S** cost, at the direction of the **COUNTY**. The **DEVELOPER** may place pavers or other structures in the easement area if such pavers or other structures can be removed, with minimal effort by the **DEPARTMENT**, in the event that such pavers or other structures need to be removed in order for the **DEPARTMENT** to make use of the easement; the **DEVELOPER** places such pavers or other structures in the easement area at its own risk, and the **DEPARTMENT** shall not be liable for any costs incurred by the **DEVELOPER** in replacing any such pavers or other structures removed by the **DEPARTMENT**.

22. **CONNECTION/FRONTAGE BY OTHERS.** Parties other than the **DEVELOPER** who own property, other than the **DEVELOPER'S** property, which has frontage to any water main installed pursuant to this Agreement, may apply to the **COUNTY** for connections to said water main. If said parties actually connect and/or abut said facilities, the **COUNTY** will impose a construction connection charge equal to one hundred thirty-seven dollars (\$137.00) for the twelve (12) inch water main, multiplied by the front foot length of the connecting/abutting property which fronts and/or abuts the water main as measured along the route of the main. The **COUNTY** will also impose construction connection charges on such other parties if said water main is required, in accordance with guidelines and criteria established by the **DEPARTMENT**, in order to provide adequate service for the fronting/abutting property. Said construction connection charges will not be required or collected from other parties for single-family residences occupied or under construction prior to the date of this Agreement. The **COUNTY** shall repay said construction connection charges to the **DEVELOPER** within ninety (90) days of receipt of same. However, the **COUNTY'S** liability for repayment to the **DEVELOPER** shall be limited to those amounts actually collected from others. This provision shall remain in effect for a period of twelve (12) years from the date of the Absolute Bill of Sale for the water main facilities constructed by the **DEVELOPER**. Per annum simple interest as established and authorized by **Section 687.01, Florida Statutes**, will accrue on all construction connection charges from the date of the Absolute Bill of Sale for the water main facilities constructed by the **DEVELOPER** to the date of payment by the connecting/abutting party. The interest rate used shall be the rate established by **Section 687.01, Florida Statutes**, at the time of payment by the connecting/abutting party. It shall be the **DEVELOPER'S** responsibility to provide the **COUNTY** with current mailing addresses during the twelve (12) year period. In accordance with the **DEPARTMENT'S** "Schedule of Water and Wastewater Fees and Charges" the **DEPARTMENT** shall retain a "Developer Repayment Fee" currently in the amount of 2.5% of the gross repayment amount established herein. This fee is subject to revision by the Board of County Commissioners at any time. The fee percentage used will be the current rate at the time of the payment.

23. **CONVEYANCE OF TITLE.** Conveyance of all easements shall be by separate instruments in recordable form as approved by the **COUNTY** and shall be accompanied by a written opinion of title by an attorney licensed to practice law in the State of Florida, which states that **Sunset-Miami Investments, Inc.**, is the owner of the property interest to be conveyed, subject only to liens, encumbrances and restrictions as are acceptable to the **COUNTY**. The opinion shall also state that upon execution by **Sunset-Miami Investments, Inc.**, a valid and enforceable easement will be vested to the **COUNTY**. The **DEVELOPER** shall pay for all recording fees and for all documentary stamps. The details for all conveyances are specified herein. Failure of the **DEVELOPER** to provide proper conveyances shall be cause for the **COUNTY** to refuse to render service to the **DEVELOPER'S** property.

24. **DRAWINGS AND CONVEYANCE DOCUMENTS.** Following completion of the water and sewer facilities contemplated herein for **COUNTY** ownership, the **COUNTY** shall provide a conveyance package for execution by the **DEVELOPER**. The properly executed documents shall be delivered to and accepted by the **COUNTY** prior to the rendition of water and/or sewer service by the **COUNTY**. The **DEVELOPER** shall pay for all recording fees and for all documentary stamps. These conveyances shall be accompanied

by copies of paid bills and lien waivers, releases, or satisfactions from all persons who performed work on the **DEVELOPER'S** property and all persons who incorporate materials into the property, together with a breakdown of the actual cost of said facilities. Concurrently, the **DEVELOPER** shall furnish the **COUNTY** with as-built drawings which meet the requirements set forth in the latest revision of the **DEPARTMENT'S** "Rules and Regulations" and shall be in accordance with the latest revision of the **DEPARTMENT'S** "Design and Construction Standard Specifications and Details", and shall be subject to approval by the **DEPARTMENT**. Approval by the **COUNTY** of all required documents and drawings shall constitute final acceptance by the **COUNTY** of said facilities. After final acceptance, the facilities shall remain at all times the sole, complete, and exclusive property of the **COUNTY** and under the exclusive control and operation of the **COUNTY**.

25. **WARRANTY AND MAINTENANCE BOND.** The **DEVELOPER** warrants that the public water facilities to be owned by the **COUNTY** shall be free from defects in materials and workmanship for a period of one (1) year from final acceptance by the **COUNTY**. Simultaneously with the conveyance of the water facilities, the **DEVELOPER** shall deliver to the **COUNTY** an executed maintenance bond or alternate security deposit acceptable to the **DEPARTMENT**, which guarantees the warranty. If it becomes necessary to repair and/or replace any of the facilities during the initial one (1) year period, then the warranty as to those items repaired and/or replaced shall continue to remain in effect for an additional period of one (1) year from the date of final acceptance by the **COUNTY** of those repairs and/or replacement. The bond shall be in the amount equal to the sum of those portions of the actual cost of construction of said facilities as follows:

<u>Types of Facilities</u>	<u>Percentage of Actual Construction Cost</u>
Water mains	25

The bonds shall have as the surety thereon only such surety company as is acceptable to the **COUNTY** and which is authorized to write bonds of such character and amount under the laws of the State of Florida. A surety company must have a **Best's Key Rating Guide General Policyholder's Rating of "A"** or better and a **Financial Category of Class "V"** or better or be acceptable to the **COUNTY**. The attorney-in-fact or other officer who signs a bond must file with such bonds a certified copy of his power-of-attorney authorizing him to do so. The Maintenance Bond may be written with the **DEVELOPER'S** contractor as "Principal" and the **DEVELOPER** and the **COUNTY** as "Co-obligees" or the **COUNTY** as sole "Obligee". In the alternative, the **DEVELOPER** may be named as "Principal" and the **COUNTY** as "Obligee". The Maintenance Bond shall remain in force for one (1) year following the date of final acceptance by the **COUNTY** of the work done pursuant to this Agreement to protect the **COUNTY** against losses resulting from any and all defects in materials or improper performance of work. If there is no building construction underway within the **DEVELOPER'S** property at the time of conveyance, the **COUNTY** shall have the right to require that the term of the Maintenance Bond be extended for a period not to exceed an additional two (2) years. Upon demand by the **COUNTY**, the **DEVELOPER** shall cause to be corrected all such defects which are discovered within the warranty period or periods as set forth above, failing which the **COUNTY** shall make such repairs and/or replacements of defective work and/or materials and the **DEVELOPER** and/or its Surety shall be liable to the **COUNTY** for all costs arising therefrom. The **DEVELOPER** also

warrants that it shall be solely responsible for the repair of any damages to said facilities caused by persons in its employment.

26. **TERM OF AGREEMENT.** Both the **DEVELOPER** and the **COUNTY** recognize that time is of the essence and that this Agreement shall be deemed null and void and unenforceable if the **DEVELOPER** fails to comply with any of the following conditions, where applicable:

- a. After execution of this Agreement, work on the water and sewer facilities shall commence within three hundred sixty-five (365) days from the execution date. Work shall be considered to have commenced and be in active progress when engineering drawings are submitted to the **DEPARTMENT** for review and approval, and, upon the **DEPARTMENT'S** issuance of said approval, a full complement of workmen and equipment is present at the site to diligently incorporate materials and equipment into the construction of the water and sewer facilities throughout the day on each full working day, weather permitting.
- b. Once the **DEVELOPER** commences work on the water and sewer facilities, said work cannot be suspended, abandoned, or not in active progress for a period exceeding three hundred sixty-five (365) days.
- c. The remedies specified herein are cumulative with and supplemental to any other rights which the **COUNTY** may have pursuant to the law or any other provision of this agreement.

27. **INDEMNIFICATION CLAUSE.** The **DEVELOPER** shall indemnify and hold harmless the **COUNTY** and its officers, employees, agents and instrumentalities from any and all liability, losses or damages, including attorney's fees and costs of defense, which the **COUNTY** or its officers, employees, agents or instrumentalities may incur as a result of claims, demands, suits, causes of actions or proceedings of any kind or nature arising out of, relating to or resulting from the performance of this Agreement by the **DEVELOPER** or its employees, agents, servants, partners, principals, contractors and/or subcontractors. The **DEVELOPER** shall pay all claims and losses in connection therewith and shall investigate and defend all claims, suits or actions of any kind or nature in the name of the **COUNTY**, where applicable, including appellate proceedings, and shall pay all costs, judgments, and attorney's fees which may issue thereon. The **DEVELOPER** expressly understands and agrees that any insurance protection required by this Agreement or otherwise provided by the **DEVELOPER** shall in no way limit the responsibility to indemnify, keep and save harmless and defend the **COUNTY** or its officers, employees, agents and instrumentalities as herein provided. The provisions in this clause shall survive the termination or expiration of this Agreement.

28. **FORCE MAJEURE.** Should either party be prevented from performing any obligations herein, including but not limited to water and/or sewer service, due to or resulting from a force majeure or inevitable accident or occurrence, such party shall be excused from performance. As used herein, force majeure shall mean an act of God which includes but is not limited to sudden, unexpected or extraordinary forces of nature such as floods, washouts, storms, hurricanes, fires, earthquakes, landslides, epidemics, explosions or other forces of nature. Inevitable accidents or occurrences shall mean those which are unpreventable by either party and shall include but not be limited to strikes, lockouts, other

industrial disturbances, wars, blockades, acts of public enemies, insurrections, riots, federal, state, county and local governmental restraints and restrictions, military action, civil disturbances, explosions, conditions in federal, state, county and local permits, bid protests, manufacturing and delivery delays, unknown or unanticipated soil, water or ground conditions and cave-ins, or otherwise, and other causes reasonably beyond the control of either party, whether or not specifically enumerated herein.

29. **SERVICE CHARGES.** The **DEVELOPER** agrees to pay to the **COUNTY** the prevailing service charges for water supply and fire protection, sewage collection and disposal within the **DEVELOPER'S** property as may be applicable until the responsibility for payment of said charges is properly transferred in accordance with the **COUNTY'S** regulations.

30. **USE OF FACILITIES BY COUNTY.** The **COUNTY** reserves the right to make full use of the water and/or sewer facilities to be owned by the **COUNTY** as contemplated herein to serve other customers at any time.

31. **OPINION OF TITLE.** With the execution of this Agreement, the **DEVELOPER** at its own expense shall deliver to the **DEPARTMENT** an opinion of title for the **DEVELOPER'S** property, issued by a qualified attorney licensed to practice law in the State of Florida, which states that **Sunset-Miami Investments, Inc.** owns fee simple title to the property referred to herein, and that the **DEVELOPER** is the lessee of said property.

32. **BACTERIOLOGICAL TESTS AND INDEMNIFICATION.** **DEP** requires that prior to the rendition of any new water service by the **DEPARTMENT**, bacteriological tests must be performed. It is the responsibility of the **DEVELOPER** to comply with all such requirements and to obtain all necessary approvals. In addition, the use of floating meters for construction purposes is subject to State of Florida requirements and approval by the **COUNTY**. The **DEVELOPER** may request approval for the use of floating meters prior to actual conveyance of title to the facilities to the **COUNTY**. However, the **COUNTY** may be required to execute documents to the Miami-Dade County Department of Regulatory and Economic Resources (**RER**) or State of Florida Department of Health (**DOH**), which state that the **COUNTY** has accepted title to the facilities. If the **COUNTY** is required to execute such documents, the **DEVELOPER** agrees to indemnify and hold the **COUNTY** harmless from and against all claims, actions, judgments, damages, loss, cost and expense including reasonable attorney's fees which may be incurred by the **COUNTY** in connection with the rendition of water service through the facilities constructed and installed by the **DEVELOPER** prior to conveyance of title to the **COUNTY**, including but not limited to those that result from failure to properly maintain and repair the water facilities.

33. **ASSIGNMENT OF AGREEMENT.** No right to any water supply and sewage disposal service commitment provided for in this Agreement shall be transferred, assigned or otherwise conveyed to any other party without the express written consent of the Director of the **DEPARTMENT** or his designee except as noted below. The consent of the **DEPARTMENT** shall not be required in connection with the sale, lease or other conveyance of property or any residential units or commercial establishments to any party who will be the ultimate user of the property, including but not limited to a bona fide purchaser, lessee, resident or occupant. The intent of this paragraph is to require consent

of the **DEPARTMENT** for assignments or transfers of any water and sewage disposal capacity allocation to any party who holds such property as an investment for resale or who intends to develop for sale a portion of the **DEVELOPER'S** property, so that the **COUNTY** can adequately determine the demand for water and sewage disposal capacity and plan for the fair and equitable allocation of water and sewage disposal capacity among the residents of Miami-Dade County. Consent, when required, shall not unreasonably be withheld by the **DEPARTMENT**. If the **DEVELOPER'S** property is transferred or conveyed, the **DEVELOPER** shall remain liable to the **COUNTY** for all sums of money and all obligations due hereunder unless released in writing by the **COUNTY**.

34. **ENTIRE AGREEMENT.** This Agreement supersedes all previous agreements and representations, whether oral or written, between the **DEVELOPER** and the **COUNTY**, and that certain Agreement for “**6075 SUNSET DRIVE**”, dated February 24, 2020, recorded in Official Records Book 31841, at Page 3387, of the Public Records of Miami-Dade County, Florida, made with respect to the matters contained herein and when duly executed constitutes the complete Agreement between the **DEVELOPER** and the **COUNTY**.

35. **NOTICE.** All notices given pursuant to this Agreement shall be mailed by United States Postal Service registered or certified mail to the parties at the addresses specified on page 2 of this Agreement or addresses otherwise properly furnished.

36. **RECORDING OF AGREEMENT.** This Agreement is being recorded in the public records of Miami-Dade County, Florida, for the particular purpose of placing all owners and occupants, their successors and assigns, upon notice of the provisions herein contained. The **DEVELOPER** shall pay all recording fees.

37. **FLORIDA LAW.** This Agreement shall be interpreted under Florida law. Venue for any litigation relating to this Agreement shall be had in Miami-Dade County, Florida.

38. **SEVERABILITY.** If any section, subsection, sentence, clause or provision of this Agreement is held invalid, the remainder of this Agreement shall not be affected by such invalidity.

6075 SUNSET DRIVE, ID# 30461a

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by their respective officials as of the day and year above written.

WITNESSETH:

MIAMI-DADE COUNTY

signature

By: _____

print name

3575 S. LeJeune Road, Miami, FL 33146

**Brandon Garcia,
New Business Manager**

**For: Roy Coley, Director
Miami-Dade Water and Sewer Department**

signature

print name

3575 S. LeJeune Road, Miami, FL 33146

STATE OF FLORIDA

COUNTY OF MIAMI-DADE

The foregoing instrument was acknowledged before me by means of: (check one)
☐ physical presence; or ☐ remote audio-visual means, this _____ day of _____,
2024, by **Brandon Garcia, New Business Manager**, for **Roy Coley, Director**, of the Miami-Dade
Water and Sewer Department, who is personally known to me and did not take an oath.

Notary Public

print name

Serial Number

6075 SUNSET DRIVE, ID# 30461a

WITNESSETH:

ALTA SUNSET, LLC, A FLORIDA
LIMITED LIABILITY COMPANY

signature

Print Name: _____

Address: _____

By: _____
signature

Print Name: _____

Address: _____

signature

Print Name: _____

Address: _____

STATE OF FLORIDA

COUNTY OF MIAMI-DADE

The foregoing instrument was acknowledged before me by means of: (check one)
☐ physical presence; or ☐ remote audio-visual means, this _____ day of _____,
2024, by _____, who is personally known to me or has/has not
produced _____ as identification and did/did not take an oath.

Notary Public

print name

Serial Number

JOINDER AND CONSENT

SUNSET-MIAMI INVESTMENTS, INC., a Florida corporation, as fee simple owner, hereby joins and consents to this **Agreement ID# 30461a** for "**6075 SUNSET DRIVE**" (the "Agreement"), and to the provisions that are imposed through the Agreement by **ALTA SUNSET, LLC**, a Florida limited liability company, as **Developer** of the Property legally described in Exhibit A of the Agreement.

ATTEST:

SUNSET-MIAMI INVESTMENTS, INC.,
A FLORIDA CORPORATION

By: _____ (SEAL) By: Teresa Sordo (SEAL)
Signature signature

Secretary
Print name above

Teresa Sordo
President
Print name above

Address: _____

11

Address: 781 CRANDON BLVD PH4
KEY BISCAINE, FL 33149

STATE OF ~~FLORIDA~~ Texas
COUNTY OF ~~MIAMI-DADE~~ Denton

The foregoing instrument was acknowledged before me by means of: (check one)
☐ physical presence; or ☒ remote audio-visual means, this 23 day of February,
2024, by Teresa Sordo, as **President**, and NA,
~~xx Secretary~~ of **Sunset-Miami Investments, Inc.**, a Florida corporation. They are personally
known to me or have produced Drivers License as identification and did/did not
take an oath.

Tiana L. Tranowicz

Notary Public

Tiana L. Tranowicz

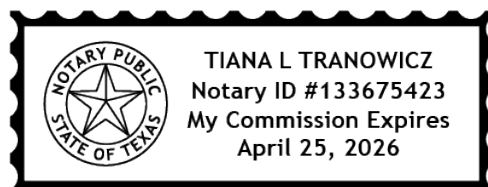
print name

133675423

Serial Number

Approved for Legal Sufficiency:

Assistant County Attorney



Completed via Remote Online Notarization using 2 way Audio/Video technology.

6075 SUNSET DRIVE, ID# 30461a

**EXHIBIT "A" OF AGREEMENT
BETWEEN
MIAMI-DADE COUNTY
AND
ALTA SUNSET, LLC**

All of Tract A, Less the East 118 feet of the North 129.07 feet, in Block 1, and Lot 3, in Block 1, of ROSSWOOD, according to the Plat thereof, as recorded in Plat Book 13, at Page 62, in the Public Records of Miami-Dade County, Florida, less the South 25 feet, of said Block1.

**EXHIBIT "B" OF AGREEMENT
BETWEEN
MIAMI-DADE COUNTY
AND
ALTA SUNSET, LLC**

SCHEDULE OF DAILY RATED GALLONAGE FOR VARIOUS OCCUPANCY

TYPES OF LAND USES**GALLONS PER DAY (GPD)**

RESIDENTIAL LAND USES	
Single Family Residence	210 gpd/unit (under 3,001 sq. ft.)
	310 gpd/unit (3,001-5,000 sq. ft.)
	510 gpd/unit (over 5,000 sq. ft.)
Townhouse Residence	165 gpd/unit
Apartment	135 gpd/unit
Mobile Home Residence/Park	160 gpd/unit
Duplex or Twin Home Residence	150 gpd/unit
Residential Facility/Institution:	
a) Congregate Living Facility (CLF)	75 gpd/bed
b) Apartment Dormitory	100 gpd/unit
c) Fire Station	10 gpd/100 sq. ft.
d) Jail	150 gpd/person
e) Other	100 gpd/person
COMMERCIAL LAND USES	
Airport:	
a) Common Area/Concourse/Retail	10 gpd/100 sq. ft.
b) Food Service	see restaurant use for allocation
Bank	10 gpd/100 sq. ft.
Banquet Hall (with or without kitchen	10 gpd/100 sq. ft.
Bar, Cocktail Lounge, Nightclub, or Adult Entertainment	20 gpd/100 sq. ft.
Barber Shop	10 gpd/100 sq. ft.
Beauty Shop	25 gpd/100 sq. ft.
Big Box Retail	2.5 gpd/100 sq. ft.
Bowling Alley	100 gpd/lane
Car Wash:	
a) Manual Washing	350 gpd/bay
b) Automated Washing	5,500 gpd/bay
Coin Laundry	110 gpd/washer
Country Club with or without kitchen	20 gpd/100 sq. ft.
Dentist's Office	20 gpd/100 sq. ft.
Fitness Center or Gym	10 gpd/100 sq. ft.
Funeral Home	5 gpd/100 sq. ft.
Gas Station/Convenience Store/Mini-Mart:	
a) Without car wash	450d/unit
b) With single automated car wash	1,750 gpd/unit
Additional single automated car wash	1,300 gpd/unit
Hospital	250 gpd/bed
Hotel or Motel	115 gpd/room

TYPES OF COMMERCIAL LAND USES (CONTINUED)	
House of Worship	10 gpd/100 sq. ft.
Industrial use NOT discharging a process wastewater and NOT utilizing potable water for an industrial process (including but not limited to automotive repair, boat repair, carpentry, factory, machine shop, welding)	4 gpd/100 sq. ft.
Industrial use discharging a process wastewater or utilizing potable water for an industrial process based on system design and evaluation by the Department	4 gpd/100 sq. ft.
Kennel	15 gpd/100 sq. ft.
Marina	60 gpd/slip
Nail Salon	30 gpd/100 sq. ft.
Nursing/Convalescent Home	125 gpd/bed
Office Building	5 gpd/100 sq. ft.
Pet Grooming	20 gpd/100 sq. ft.
Physician's Office	20 gpd/100 sq. ft.
Public Park:	
a) With toilets only	5 gpd/person
b) With toilets and showers	20 gpd/person
Public Swimming Pool Facility	30 gpd/person
Recreational Vehicle (RV) Park (seasonal use)	150 gpd/space
Restaurant	
a) Fast Food	65 gpd/100 sq. ft.
b) Full Service	100 gpd/100 sq. ft.
c) Take-Out	100 gpd/100 sq. ft.
Retail	10 gpd/100 sq. ft.
School:	
a) Day care/Nursery (adults and children)	10 gpd/100 sq. ft.
b) Regular school	12 gpd/100 sq. ft.
Self-service storage units	1.5 gpd/100 sq. ft.
Shopping Center/Mall Shell/Common Area	10 gpd/100 sq. ft.
Spa	20 gpd/100 sq. ft.
Sporting Facilities and Auditorium	3 gpd/seat
Theater	
a) Indoor	1 gpd/seat
b) Outdoor/Drive-in	5 gpd/space
Veterinarian Office	20 gpd/100 sq. ft.
Warehouse/Speculation Building	2 gpd/100 sq. ft.
Wholesale Food Preparation (including but not limited to meat markets and commissaries)	35 gpd/100 sq. ft.

LEGEND:

gpd - gallons per day
sq. ft. - square feet

NOTES:

- 1) Sewage gallonage refers to sanitary sewage flow on a per unit and/or use basis for average daily flow in gallons per day.
- 2) Condominiums shall be rated in accordance with the specific type of use (e.g., apartment, townhouse, warehouse, etc.).

**EXHIBIT "C" OF AGREEMENT
BETWEEN
MIAMI-DADE COUNTY
AND
ALTA SUNSET, LLC**

BUILDING CONNECTION SCHEDULE

<u>TYPE AND NUMBER OF UNITS</u>	<u>GALLONAGE (gpd)</u>	<u>COMPLETION OF BUILDING CONNECTION</u>
Construct and connect to the County's water and sewer systems:		
316 apartments	42,660	2024 – 2025
1,062 sq-ft of full-service restaurant	1,062	2024 – 2025
2,634 sq-ft of retail	263	2024 – 2025
 Previously connected to the County's water and sewer systems 20,371 sq-ft of office	 -1,019 (credit)	 n/a